

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on May 29, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right of Access against GEO ALTERNATIVA, S.L. (hereinafter, the respondent) without their request receiving the legally established response.

The complainant states that, after having a dispute regarding a claimed debt with the respondent, on April 21, 2023, they received a call from a debt collection company, informing them that the call would be recorded. They indicate having requested access to a copy of the recording, without having received a response. Along with their complaint, they provide the access request dated April 21, 2023, and the acknowledgment of receipt of the same date.

SECOND: On November 24, 2023, this Agency resolves regarding the complaint filed by the complainant and their unattended access request. It concludes by archiving the complaint as follows: "... In this case, considering that the complaint was filed with this Agency on May 29, 2023, pursuant to the provisions of Article 65.5 of the LOPDGDD, it is appropriate to process it in accordance with the provisions of Title VIII of the aforementioned regulation, without prejudice to the Agency's authority to subsequently and expressly archive the complaint. In this case, from the actions taken and the documentation in the file, the existence of an infringing action by the respondent within the jurisdiction of the AEPD is not inferred, therefore, the archiving of the complaint is appropriate. All of this, without prejudice to the Agency, applying the investigative and corrective powers it holds, may carry out subsequent actions related to the data processing referred to in the complaint. For all the above, by the Director of the Spanish Agency for the Protection of Data, IT IS AGREED: FIRST: TO ARCHIVE the complaint..."

THIRD: The complainant, in total disagreement with the resolution, submits a motion for reconsideration which is resolved on March 22, 2024, favorably, leading to the current complaint with the following arguments:

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"...In this case, the appealing party exercised the right of access to the recording of their calls using a means different from that established by the responding party, without having received the legally established response. As indicated, the use of another means to exercise rights is not a reason to deny a right. In this regard, the Guidelines 01/2022 on the rights of data subjects - Right of access, version 2.0, adopted on March 28, 2023, state in section 53 the following (the translation is ours): "(...) However, if a data subject makes a request using a communication channel provided by the data controller, which is different from the one indicated as preferable, such request will generally be considered effective, and the data controller must process such request accordingly (...). Data controllers must make all reasonable efforts to ensure that the exercise of the data subject's rights is facilitated (...)". Therefore, in accordance with the provisions of Article 12.4 of the LOPDGDD, the responding party, as the data controller, must provide evidence of compliance with the duty to respond to the request for the exercise of the right made, either accepting or rejecting it in a reasoned manner. Given that the responding party has not provided evidence of an express response to the exercise of the right of access, the appeal filed must be upheld..."

FOURTH: In light of the events that occurred on March 22, 2024, the original complaint is again forwarded to the responding party, along with the appeal for reconsideration submitted by the

complaining party and the resolution of said appeal, so that within fifteen working days they may present the arguments they deem appropriate. The responding party presents the following arguments:

“And it is based on the premise that the right of access was made through a channel different from the one PODO normally uses. That is to say, it was made through the channel of ***EMAIL.1 instead of through the channel of ***EMAIL.2. It should be noted that this party argued this in its previous writings merely as a complement to the denial of the greater claim. In other words, PODO understood that this person did not want to exercise a right of access through any channel, since what was being discussed was a debt. See how the discussion through the customer channel is precisely for that reason, due to a debt (already resolved at the time), and that the department that called was customer service. There was no call from a collections department nor were the data transferred to any third party for such purpose, regardless of whether there could be a legitimate interest or whether there was a signed contract as a data processor, but the reality is that the thread of calls and claims was due to a dispute over the amount of invoices. Let us remember that within that economic dispute that Mr. A.A.A. indicates: “copy of all telephone conversations.” That is to say, that within the email of ***EMAIL.1, without indicating anything in the subject regarding the right of access and without referencing any type of recording to which to refer, the only thing, we insist, that was requested was a copy of the “conversations” telephone.”

FIFTH: After examining the document submitted by the responding party, it is forwarded to the complaining party, so that, within fifteen working days, they may formulate the arguments they consider appropriate.

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"The allegations presented by PODO refer to the fact that I did not exercise a right of access to personal data when I requested the recordings of the telephone calls I had with the sales representative. To support this, they state that 'from PODO it was understood that this person did not want to exercise a right of access through any channel since what was being discussed was a debt.' They justify this by saying that 'without indicating anything in the subject regarding the right of access and without referencing any type of recording to which to refer, the only thing, we insist, that was requested was a copy of the "telephone conversations." They base their claim on my failure to use the form provided by that AEPD on its website, understanding that the right was not exercised because my request did not meet certain supposed requirements to exercise the right of access.

Additionally, PODO argues that it has demonstrated that 'it is expressly stated (sic) in the recordings that "they may be recorded," and this is so because technically it would be impossible to record all call incidents of all clients.' They also refer to the fact that my request does not contain any word that filters or redirects this email to the corresponding department, because the word 'access' does not appear, and therefore it could not be interpreted that this was a request for access.

They summarize their request for dismissal because (i) I do not use the enabled channel, (ii) I do not indicate any keyword for the identification of the right, (iii) I do so through the generic customer channel, (iv) the email starts with a subject related to a debt, (v) prior to this email there is more 'thread' of emails regarding allegedly incorrectly charged invoices, and (v)(sic) it is also not determined to which specific call access is desired when it has been demonstrated that the calls 'may be recorded.'

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: 'The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.'

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II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, among them, to enforce the Regulation and promote awareness among data controllers and processors regarding the obligations that pertain to them, as well as to address complaints filed by a data subject and investigate, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including 'ordering the controller or processor to address requests for the exercise of the rights of the data subject under this Regulation.'

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to state its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and plain language.

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IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request

the data subject to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the data subject may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for doing so. Furthermore, the request will be considered excessive when the data subject chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the data subject.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if not obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

V

Conclusion

In the case analyzed here, the claimant exercised their right of access and, after the period established in the aforementioned regulations, their request received a response that this Agency deemed adequate, and the complaint was filed.

Later, the claimant submitted a request for reconsideration which, once analyzed, was upheld and gave rise to the current complaint. Now, having analyzed all the documentation provided by both parties, we find that the reason for the discrepancy is that the

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The responding party has always considered that this was not an exercise of the right of access, as the designated channel for this purpose was not used, but rather further explanations regarding the ongoing claims that are still in process. It should be noted that the claiming party has explicitly requested in the emails sent access to the telephone calls held with the respondent, even if not through the designated channel for this purpose.

It is important to recall that Article 12 of the LOPDGDD, in its second paragraph, states: The data controller shall be obliged to inform the affected party about the means available to exercise the rights that correspond to them. The means must be easily accessible to the affected party. The exercise of the right may not be denied solely on the grounds that the affected party has opted for another means. It should be stated that the responding party has been aware from the beginning of the processing of this claim of what the claiming party was requesting, namely access to the telephone calls held with them, and that during the processing of this procedure, the responding party has not provided evidence of compliance with the duty to respond to the request for exercise by estimating or dismissing in a reasoned manner the access to the telephone calls.

Consequently, it is appropriate to uphold the claim that led to this procedure.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge GEO ALTERNATIVA, S.L. with NIF B87382644, to send to the claiming party, within ten working days following the notification of this resolution, a certification addressing the requested right or a reasoned denial indicating the reasons why the request cannot be met, in accordance with the provisions established in the body of this resolution. The actions taken as

a result of this Resolution must be communicated to this Agency within the same period.
Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to GEO ALTERNATIVA, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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